

THE HON'BLE SRI JUSTICE SAMBASIVA RAO NAIDU

TRANSFER CIVIL MISCELLANEOUS PETITION

No. 304 OF 2022

ORDER :

This petition has been filed by the petitioner/wife against the respondent/husband under Section 24 C.P.C., with a prayer to transfer F.C.O.P.No.25 of 2021 filed by the respondent/husband before the Family Court, City Civil Court, Secunderabad to Family Court at Khammam.

2. In the affidavit filed in support of the petition, the petitioner/wife has stated that her marriage was performed with respondent on 11-12-2010 by presenting sufficient dowry and other customary gifts. The petitioner joined the respondent at Secunderabad and they lead happy marital life for a period of 6 months. Subsequently, the respondent dropped the petitioner at her parents' house at Khammam in the month of August, 2011. Thereafter, the respondent and his family members started harassing the petitioner both physically and mentally by saying that she is not fit

person for leading matrimonial life and the marriage was performed against his wishes and started demanding additional dowry and if she fails to arrange additional dowry, he will file divorce petition and marry another woman. The respondent herein filed Divorce petition before the Family Court at Secunderabad vide F.C.O.P.No.25 of 2021. The petitioner at no point of time desired to get divorce and it is the respondent on the plea that the petitioner is not conceiving is opting to get divorced. The petitioner is ready to join the respondent. The petitioner filed a petition for maintenance vide M.C.No.92 of 2022 before the Family Court at Khammam on 28.09.2022.

3. The petitioner states that respondent has filed F.C.O.P.No.25 of 2021 before the Family Court, Secunderabad. The petitioner claims that she is a poor lady without financial help and other male assistance. She need to travel 200 kilometers to attend the Court at Secunderabad, which she cannot afford, thereby she sought for transfer of the case.

4. Learned counsel for the petitioner informed the Court that he has already filed proof of service vide USR Nos.106240 and 106664 of 2022, which is not reflected in the cause list. On perusal of the copy furnished by learned counsel for the petitioner annexed with acknowledgment, the respondent was served with notice. But, he did not appear nor he has engaged Advocate to represent him. Hence, the respondent is set *ex parte*.

5. Heard counsel for the petitioner.

6. Now the point for consideration is :

Whether there are any grounds for transfer of F.C.O.P.No.25 of 2021 from the file of Family Court at Secunderabad to the file of Family Court at Khammam?

7. **POINT**

Learned counsel for the petitioner has submitted that the respondent only with a view to harass the petitioner herein filed divorce case at Secunderabad. In fact, she need

to attend other case at Khammam. She has also stated the petitioner being poor lady, cannot afford to travel such a long distance. She has no other male help to escort her from Khammam to Secunderabad.

8. Learned counsel for the petitioner has submitted that in view of the judgment of the Hon'ble Apex Court "interest of the wife shall be considered while deciding the petition under Section 24 C.P.C."

9. The respondent who was served with notice did not choose to raise any objection, remained exparte.

10. Therefore, having considered the averments made by the petitioner and in view of the circumstances explained by the counsel, the petitioner is entitled to seek transfer of F.C.O.P.No.25 of 2021 from the file of Family Court at Secunderabad to the file of Family Court at Khammam.

11. In the result the petition is allowed. As a consequence thereof, F.C.O.P.No.25 of 2021 on the file of

Family Court at Secunderabad to the file of Family Court at Khammam.

12. The concerned Court is hereby directed to transmit the entire case file, after duly indexed, within (4) four weeks from the date of receipt of this Order, under the intimation to the other side.

13. As a sequel, pending Miscellaneous Applications, if any, shall stand closed.

JUSTICE SAMBASIVA RAO NAIDU

Date: 20.12.2022

Pssk